

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
JOSELIN EUSTATE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
MIGUEL SANCHEZ, Shield No. 006174, POLICE
OFFICER CURTIS CATO, and POLICE OFFICERS
JOHN DOES #1-4 (names and number of whom are
unknown at present), and other unidentified members of the
New York City Police Department,

Defendants.
----- X

AMENDED SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

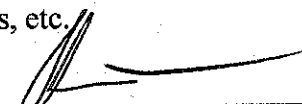
Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 9, 2015

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MIGUEL SANCHEZ, Shield No. 006174, 44th Precinct, 2 E 169th
St, Bronx, NY 10452
POLICE OFFICER CURTIS CATO, 44th Precinct, 2 E 169th St, Bronx, NY 10452

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INDEX NO.:

AMENDED VERIFIED
COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, JOSELIN EUSTATE, by his attorneys, Jacobs & Hazan, LLP, as and for his
Amended Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On June 18, 2013, approximately 5:30 a.m., plaintiff Joselin Eustate, while lawfully inside of his apartment located at 559 West 171st Street, Apt. 23, New York, New York, was subjected to an unlawful arrest and false imprisonment by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted by the defendant police officers. Further, the defendant police officers denied plaintiff the right to a fair trial. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully arrested, maliciously prosecuted, and denied plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Joselin Eustate is a resident of the state of New York.

3. POLICE OFFICER MIGUEL SANCHEZ, Shield No. 006174, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER MIGUEL SANCHEZ, Shield No. 006174, is and was at all times relevant herein, assigned to the 44th Precinct.

5. POLICE OFFICER MIGUEL SANCHEZ, Shield No. 006174 is being sued in his individual and official capacity.

6. POLICE OFFICER CURTIS CATO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER CURTIS CATO, is and was at all times relevant herein, assigned to the 44th Precinct.

8. POLICE OFFICER CURTIS CATO is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-4 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On June 18, 2013, at approximately 5:30 a.m., plaintiff was lawfully inside of his apartment located at 559 West 171st Street, Apt. 23, New York, New York when the individually named defendant police officers arrested plaintiff inside of his apartment.

18. Upon information and belief, on or about June 8, 2013 at approximately 12:30 a.m., defendants received a complaint that a complaining victim was shot and robbed by an individual in front of Elliot Place, Bronx, New York.

19. At no point in time was plaintiff anywhere near Elliot Place, Bronx, New York on June 8, 2013, at approximately 12:30 a.m.

20. At no time prior to arresting plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed the aforementioned crimes against the complainant.

21. In fact, the defendant police officers were in possession of a videotape that proved that the plaintiff was not at the location of the crime on June 8, 2013 at 12:30 a.m. and was not the perpetrator of this alleged crime.

22. Furthermore, on June 14, 2013, six days after the incident, when the defendant police officers showed the complainant a picture of plaintiff to which the complainant stated to the police officers that he did not see the person who committed the crime against him and could not identify plaintiff as the perpetrator of the crime.

23. Nevertheless, on June 18, 2013, the defendant police officers handcuffed and arrested plaintiff without legal justification or probable cause.

24. Thereafter, plaintiff was transported to the 42nd precinct.

25. After several hours at the 42nd precinct, plaintiff was transported to the 44th precinct.

26. While at the precinct, the defendant police officers falsely communicated to the Bronx District Attorney's Office that plaintiff had committed a crime despite knowing that

plaintiff had not committed any crime and despite being in possession of evidence that exonerated plaintiff of the alleged crime.

27. Specifically, the defendant police officers falsely stated to the District Attorney's Office that the complainant had identified plaintiff as the perpetrator of the alleged crime when in fact the police officers knew that was false and knew that the complainant could not and did not actually identify plaintiff as the person who committed the crime against him.

28. Based upon the false, incomplete, and/or misleading information provided to the District Attorney's Office by the defendant police officers, a prosecution against plaintiff was initiated against the plaintiff.

29. After several hours at the 44th precinct, plaintiff was transported to Bronx Central Booking.

30. On June 19, 2013, after over 36 hours in custody, plaintiff was arraigned in Bronx Central Booking and the Judge set bail in the amount of \$50,000.

31. Plaintiff was unable to post bail and was remanded to the Department of Correction.

32. Thereafter, on June 19, 2013, plaintiff was transported to Vernon C. Bain Correctional ("VCBC") facility where he was incarcerated for an additional 7 days.

33. On June 25, 2013, plaintiff was released on his own recognizance and was given a new court date.

34. Plaintiff was forced to appear in Court on numerous occasions before all charges against plaintiff were dismissed on March 6, 2014.

35. As a result of the false arrest, false imprisonment, and malicious prosecution, plaintiff's college grades were negatively affected.

36. Additionally, as a result of the false arrest, false imprisonment, and malicious prosecution, plaintiff was terminated from his employment.

37. The unlawful arrest, false imprisonment, malicious prosecution, and denial of a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

38. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein.

39. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Failure to Intervene

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

46. Defendants failed to intervene to prevent the unlawful conduct described herein.

47. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Unlawful Stop

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The conduct of the defendants in stopping plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SIXTH CAUSE OF ACTION

Negligence

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 56 with the same force and effect as if more fully set forth at length herein.

58. Defendants owed a duty of care to plaintiff.

59. Defendants breached that duty of care by unlawfully arresting, illegally searching, and maliciously prosecuting plaintiff.

60. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

61. All of the foregoing occurred without any fault or provocation by plaintiff.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Joselin Eustate. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

65. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

66. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

67. Plaintiff repeats and realleges paragraphs 1 through 66 as if fully set forth herein.

68. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

69. Defendants commenced and continued a criminal proceeding against plaintiff.

70. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

71. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

72. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Denial of Right to Fair Trial

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 74 with the same force and effect as if fully set forth herein.

76. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

77. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

78. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

79. In withholding/creating false evidence against plaintiff Joselin Eustate, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

80. As a result of the foregoing, plaintiff Joselin Eustate, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

83. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Joselin Eustate demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 9, 2015

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER MIGUEL SANCHEZ, Shield No. 006174, 44th Precinct, 2 E 169th
St, Bronx, NY 10452
POLICE OFFICER CURTIS CATO, 44th Precinct, 2 E 169th St, Bronx, NY 10452

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
February 9, 2015


STUART E. JACOBS